

This Synopsis is a Presolicitation Notice for the U.S. General Services Administration's (GSA), Public Buildings Service (PBS). This notice is neither a solicitation announcement, nor a request for proposal or related documents.

NOTE: GSA is re-soliciting this requirement in response to a protest at the U.S. Court of Federal Claims. See *Project Labor Agreement* discussion below.

Project Description: This Presolicitation Notice is for Design-Build (DB) services required for the new United States Courthouse Project located at 180 Allyn Street in Hartford, CT. The existing Hartford Courthouse, the Abraham A. Ribicoff Federal Building and Courthouse was constructed in 1963. The facility does not have the space functionality, security and existing conditions to meet the needs of the court. Additionally, the location of the courtrooms and detention areas creates a significant circulation challenge for the U.S. Marshals Service (USMS) prisoner movement throughout the public spaces of the courthouse that does not meet the operational and safety needs of the Judiciary.

PBS is seeking a highly qualified contractor to provide comprehensive site design and construction services for a new U.S. Courthouse in Hartford, CT.

The proposed new courthouse is estimated to have a maximum total area not to exceed 281,000 gross square feet of office, storage, and special use space. The site selection for a new project site has been completed. The site consists of a 2.19 acre parcel located at 180 Allyn Street in Hartford. The new facility is to be designed to accommodate all court functions, specifically up to 11 total courtrooms, and up to 18 separate chambers, to house the U.S. District Court and U.S. Bankruptcy Court judges. The facility will also house the U.S. District Clerk, U.S. Bankruptcy Clerk, the U.S. Probation and Pretrial Services Offices, and the USMS.

The DB Contractor shall be a member of the project development team during the design and construction phases, along with GSA as owner/developer and GSA's selected Construction Manager as Agent (CMa) firm. At the time of contract award, the DB Contractor's firm price for design and for construction phase services will form the basis of the contract. The services requested of the DB Contractor shall cover a wide range of design and construction activities, which are often performed by both Architects and Engineers (A/Es) and General Contractors (GCs).

The services under this proposed contract will include the following: Design Phase Services (DPS) and Construction Phase Services (CPS). DPS shall include, but may not be limited to, preparation of concept, design development and construction documents, project schedule development, recommendation and implementation of phased construction (fast-tracking), cost estimating/tracking, development of subcontractor and supplier interest and identification of long-lead items. CPS shall include, but not be limited to, site remediation, construction of the courthouse, administration of the construction contract (whether the work is performed with the DB Contractor's own forces and/or under subcontract), conducting regular construction meetings, Critical Path Method (CPM) scheduling with time and resource loading, daily logs and monthly reports, monitoring of construction costs, record keeping, progress reporting, schedule control, inspections, testing and other required supplemental services. The DB Contractor shall provide GSA with sound management advice regarding the approach to the project, how to achieve the

best value in the work being accomplished, necessary actions, schedule control, alternative ideas, problem/claim prevention and budgeting. The DB Contractor shall have a full understanding of the project, the principles of Federal construction contracting and contract administration. Most importantly, the DB Contractor shall have complete responsibility for the design and construction of the facility. This project is utilizing a design to budget approach for this project. The highest priority of the Government is obtaining full scope within budget utilizing a Scope Prioritization Matrix that is intended to help offerors identify areas of betterments or scope reductions to achieve maximum scope for the prescribed budget. The design of the new U.S. Courthouse shall align with Executive Order 14344, Making Federal Architecture Beautiful Again, dated August 28, 2025.

Project Labor Agreements (PLAs): Over the last year, many construction firms have protested agencies' adherence to the Federal Acquisition Regulation's PLA requirements. The Court of Federal Claims has ruled that, except in limited circumstances, implementation of the FAR's mandatory PLA requirements violates the Competition in Contracting Act's requirement for full and open competition. GSA's initial procurement for this project was protested on the grounds that it included PLA requirements.

GSA disagrees with the Court of Federal Claims and continues to believe that agencies may implement regulatory PLA requirements without violating the Competition in Contracting Act's requirement for full and open competition. Nevertheless, to move the Hartford Courthouse project forward with a PLA requirement, the GSA Administrator has invoked the public interest exception to the Competition in Contracting Act's requirement for full and open competition. 41 U.S.C. § 3304(a)(7). As required by statute, GSA is notifying Congress of this decision.

The GSA's Administrator's invocation of the public interest exception is designed to respond to the Court of Federal Claims' decisions on PLAs and to allow GSA to comply with FAR subpart 22.5 and Executive Branch policy by including a mandatory PLA requirement that is necessary in the public interest for this project. To be clear, no firms are excluded from the competition and GSA encourages all offerors to submit a response to the solicitation. All responsible sources may submit a proposal which will be considered by the agency. The Administrator's determination is attached.

Contract Type: The contract type will be Firm-Fixed Price.

Selection and Schedule: This requirement will be competitively procured in accordance with two-phase design-build selection procedures. FAR 36.101-2 (FAR Deviation RFO-2025-36). The awardee will be competitively chosen using best value tradeoff procedures in accordance with FAR Subparts 15.1 and 15.2 (FAR Deviation RFO-2025-15).

The period of performance for the Design and Construction Services is anticipated to be January 2027 to January 2031.

Magnitude of Construction: The Estimated Cost of Construction at Award is \$292,000,000.

NAICS: The North American Industry Classification System (NAICS) code associated with this procurement is 236220, Commercial and Institutional Building Construction, and the Small Business Administration size standard is \$45 million.

Solicitation Information: GSA anticipates issuing the Solicitation on or about March 12, 2026 with proposals due thirty (30) calendar days thereafter. All information, amendments and questions concerning this solicitation will be electronically posted to the Governmentwide Point of Entry at www.sam.gov. No telephone requests will be accepted and no paper copies will be mailed to prospective offerors.

All offerors are required to have an active registration in the System for Award Management (www.sam.gov) at the time of offer submission.

In addition, in order for contractors to have access to Federal space, the contractor will be required to adhere to the HSPD-12, Directive Clearance Process, in accordance with FAR 52.204-9 – Personal Identity Verification of Contractor Personnel (JAN 2011).

One or more of the items under this acquisition is subject to the World Trade Organization Government Procurement Agreement and Free Trade Agreements.

Place of Performance: 180 Allyn Street
Hartford, CT 06103

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